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Case Number: 22STCV02165 Hearing Date: July 28, 2026 Dept: L

NORMA VENCEBI vs CITY OF SOUTH GATE, et al.

CASE NO.: 22STCV02165

HEARING: July 28, 2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Plaintiff Norma Vencebi's Motion for Leave
to Amend Plaintiff's Expert Witness Designation is GRANTED.

Plaintiff to give notice.

Background

This is an action for dangerous condition of public property regarding an accident that occurred on September 1, 2021. On January 19, 2022, Plaintiff Norma Vencebi ("Plaintiff") filed this action against Defendants City of South Gate, County of Los Angeles, California Department of Transportation, Javier Hernandez, Esperanza Hernandez, and Does 1 to 50. The Complaint alleges that Plaintiff tripped on an uneven sidewalk causing Plaintiff to fall and sustain injuries. The Complaint alleges the following causes of action 1) Premises Liability (against Defendants City of South Gate, County of Los Angeles, and California Department of Transportation), and 2) General Negligence (against Defendants Esperanza Hernandez and Javier Hernandez).

On July 25, 2023, Defendant County of Los Angeles was dismissed without prejudice.

On May 7, 2024, Defendants Esperanza Hernandez and Javier Hernandez were dismissed with prejudice.

On July 17, 2024, Defendant California Department of Transportation was dismissed without prejudice.

On December 22, 2025, Plaintiff served its initial Expert Witness Disclosure. (Ellis Decl., ¶ 4, Exh. 1.)

On March 17, 2026, Attorney Anthony Ellis was associated in as co-counsel and trial counsel for Plaintiff. (Ellis Decl., ¶ 2.)

On April 6, 2026, this matter was transferred from Spring Street Courthouse to Norwalk Courthouse.

Plaintiff now moves to amend Plaintiff's Expert Designation.

The Court notes that the instant hearing was originally scheduled for July 7, 2026. On the Court's own motion, the hearing was continued to today's date. (5/19/26 Notice Re: Continuance.)

Defendant City of South Gate ("Defendant") filed an untimely opposition based on the prior hearing date. The Court exercises its discretion to consider the opposition.

No trial date is set in this matter.

Legal Standard

"On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to do either or both of the following: (1) Amend that party's expert witness declaration with respect to the general substance of the testimony that an expert previously designated is expected to give." (Code Civ. Proc., §

2034.610, subd. (a)(2).)

Code of Civil Procedure section 2034.620
states the following:

“The court shall
grant leave to augment or amend an expert witness list or declaration only if
all of the following conditions are satisfied:

(a) The court has
taken into account the extent to which the opposing party has relied on the
list of expert witnesses.

(b) The court has
determined that any party opposing the motion will not be prejudiced in
maintaining that party's action or defense on the merits.

(c) The court has
determined either of the following:

(1) The moving party would not in
the exercise of reasonable diligence have determined to call that expert
witness or have decided to offer the different or additional testimony of that
expert witness.

(2) The moving party failed to
determine to call that expert witness, or to offer the different or additional
testimony of that expert witness as a result of mistake, inadvertence,
surprise, or excusable neglect, and the moving party has done both of the
following:

(A) Sought
leave to augment or amend promptly after deciding to call the expert witness or
to offer the different or additional testimony.

(B) Promptly
thereafter served a copy of the proposed expert witness information concerning
the expert or the testimony described in Section 2034.260 on all other parties
who have appeared in the action.

(d) Leave to augment or amend is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.”

(Code Civ. Proc.,
§ 2034.620, emphasis added.)

Meet and Confer

A motion to amend
expert witness designation must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2034.610, subd. (c).)

On March 20, 2026,
Plaintiff served an Amended Expert Designation on Defendant. (Ellis Decl., ¶ 7, Exh. 2.) That day, Plaintiff’s counsel sent an email to Defense counsel, requesting that Defendant stipulate to the amended designation. (Ellis Decl., ¶ 8.) On March 23, 2026, Plaintiff’s counsel sent a follow-up email. (Ellis Decl., ¶ 9.) On March 24, 2026, the parties meet and conferred, and Defense counsel indicated they would not agree to a stipulation. (Ellis Decl., ¶¶ 10-11, Exh. 3.)

The Court finds
that the meet and confer requirement has been met.

Discussion

Plaintiff now moves to correct the following
errors in the Declaration in Support of the Expert Witness Designation
(hereinafter “Declaration”), as pertaining to expert Mark Liker, M.D.:

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(1) language incorrectly limiting Dr. Liker’s
testimony to cervical spine injuries only, despite Plaintiff’s claims including
lumbar spine and related injuries; and

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(2) language incorrectly stating that Dr. Liker would offer rebuttal opinions regarding Plaintiff's own retained experts, rather than Defendant's experts.

(See Ellis Decl., ¶ 4, Exh. 1, p. 7-8.)

The initial Declaration, prepared by co-counsel, Igor Fradkin, stated the following:

"Dr. Mark Liker is a Board Certified Spine Neurosurgeon expert. A copy of Dr. Liker's curriculum vitae ("CV"), fee schedule are attached as Exhibit "B". Dr. Liker charges \$1,800.00 an hour for deposition testimony, 2- hour minimum anything over 30 minutes will be billed at the 1-hour fee \$750.00 surcharge for all video depositions. Dr. Liker is expected to testify regarding Plaintiff's cervical spine injuries, including, but not Limited to: (1) medical causation; (2) damages; (3) pre- existing/prior conditions; (4) extent of injury, past and future, if any; (5) necessity/reasonableness of treatment and costs for the same; (6) future treatment, if any; (7) his review of Plaintiff's medical records, imaging records, depositions, and documents produced in discovery; (8) the incident that is the subject of the above captioned lawsuit, as related to Plaintiff's injuries to his cervical spine; (9) his medical examination of Plaintiff; and (10) his response/rebuttal to any opinions offered by Plaintiff's treating physicians and experts. Dr. Liker will testify as to the treatment and injuries related to this incident and the medical bills that was reasonable and necessary. This expert may rely on demonstratives, applicable medical literature, and any additional/other deposition testimony in this matter."

(Ellis Decl., ¶ 4, Exh. 1, emphasis added.)

Plaintiff seeks to amend the Declaration to state the following:

"Dr. Liker is expected to testify, within the scope of his education, training, experience, review of records, and examination of Plaintiff, regarding Plaintiff's accident-related injuries and complaints, including but not limited to injuries

to the cervical spine, lumbar spine, head, knee, and brain; other physical and neurological injuries claimed by Plaintiff; the nature and extent of such injuries; medical causation; diagnosis; prognosis; aggravation of any preexisting or prior conditions; the reasonableness, necessity, and causal relationship of Plaintiff's past medical care, treatment, procedures, and charges; Plaintiff's need for and the reasonableness/necessity of future medical care and treatment; and the interpretation and significance of Plaintiff's medical records and diagnostic imaging studies. Dr. Liker may further testify regarding his review of Plaintiff's medical records, billing records, diagnostic studies, deposition testimony, and documents produced in discovery, as well as his examination of Plaintiff. Dr. Liker may also offer response and rebuttal opinions to the reports, testimony, examinations, and opinions of Defendants' experts and other medical witnesses, all within the scope of his education, training, and experience."

(Fradkin Decl., ¶ 9.)

Plaintiff argues that the initial Declaration contained such errors based on mistake and inadvertence and thus, amendment is warranted pursuant to Code of Civil Procedure section 2034.620, subdivision (c)(2). Mr. Fradkin declares that his office was responsible for preparing the initial Declaration, stating that the errors "resulted from an incomplete cut-and paste from another matter, which led to contradictory language incorrectly limiting Dr. Liker's testimony to cervical spine injuries only, despite Plaintiff's claims including lumbar spine and related injuries." (Fradkin Decl., ¶¶ 2-6.) The errors were unintentional and clerical in nature. (Fradkin Decl., ¶¶ 7, 11.) Mr. Fradkin intended that Dr. Liker would offer opinions, consistent with his experience, regarding all of Plaintiff's injuries, causation, damages, and opinions responding to defense medical evidence (Fradkin Decl., ¶ 8.)

Plaintiff argues that the initial Declaration does not reflect Dr. Liker's actual opinions, and the proposed amendment will correct and clarify the scope of Dr. Liker's testimony. (Ellis Decl., ¶¶ 5-6; Fradkin Decl., ¶ 7.)

Plaintiff's counsel acted promptly upon discovering the error, as he was retained on March 17, 2026 and filed this Motion on April 7, 2026. Plaintiff also served a copy of the proposed Amended Expert Designation on Defendant on March 20, 2026. (Ellis Decl., ¶ 7, Exh. 2.)

Further, Defendant will not suffer from prejudice as a result of the proposed amendment because 1) expert depositions have not yet occurred, 2) Defendant has designated experts in overlapping specialties, and 3) the case is currently in the process of being stayed pending writ proceedings. (Ellis Decl., ¶¶ 13-15.) In contrast, Plaintiff would suffer from prejudice—specifically, “Dr. Liker is Plaintiff’s sole retained medical expert and any limitation or exclusion of his opinions based on the uncorrected drafting errors would devastate Plaintiff’s ability to present her case on causation, injury, and damages.” (Mot., 9:20-22.)

In opposition, Defendant argues that the errors in the Declaration were not due to “clerical errors” but were rather the “direct result of deliberate, tactical litigation decisions made by Plaintiff’s previous counsel, Igor Fradkin with Downtown L.A. Law Group, which clearly limited Dr. Mark Liker’s testimony to cervical spine injuries and no other type of injuries to other parts of the body.” (Opp., 2:8-11.) Plaintiff’s counsel failed to attach to the Motion a declaration from Mr. Fradkin, who was the only person who would have a personal knowledge supporting a claim of mistake, inadvertence, surprise or excusable neglect. Plaintiff’s counsel cannot testify to such errors without such personal knowledge.

Further, the Motion fails to meet the “prompt action” requirement under Code of Civil Procedure section 2034.620, subdivision (c)(2)(A). Specifically, on April 1, 2026, in ruling on Plaintiff’s Ex Parte Application For Order Shortening Time to Hear Motion to Amend Expert Designation, Judge Lisa R. Jaskol denied the ex parte, noting the following: “Despite what Plaintiff calls “clear and obvious drafting errors” in the expert’s declaration (served December 22, 2025), and the asserted importance of this “sole retained medical expert” to Plaintiff’s case, Plaintiff’s counsel did not identify the errors until March 17, 2026. Plaintiff does not explain why she did not identify the errors and move to amend the expert witness designation earlier.” (Navarrette Decl., ¶ 3, Exh. A.)

In reply, Plaintiff states that the Declaration of Igor Fradkin was attached to the Motion. Mr. Fradkin’s declaration is direct evidence of mistake and inadvertence. Further, relief was promptly sought after the errors were discovered by co-counsel. The Judge Jaskol’s April 1, 2026 ruling on Plaintiff’s Ex Parte Application does not bear on the merits of this Motion. Lastly, Defendant identifies no prejudice if the

amendment is allowed.

The Court agrees with Plaintiff. Co-counsel

Mr. Fradkin's Declaration is sufficient evidence that the errors in the initial Declaration were the result of mistake and inadvertence. (Fradkin Decl., ¶¶ 5-11.)

The Court finds that the proposed amendments will allow the Declaration to accurately reflect Dr. Liker's testimony. Once co-counsel, Mr. Ellis, discovered the errors after he was retained as co-counsel on March 17, 2026, Plaintiff promptly notified Defendant on March 20, 2026 and filed this Motion on April 7, 2026. (Ellis Decl., ¶¶ 7-8, Exh. 2.)

Further, Defendant has demonstrated no

prejudice will result in the amendment. Trial has not yet been set in this case, and no expert depositions have occurred. (Ellis Decl., ¶ 13.) Lastly, Plaintiff states that Dr. Liker will be made available for his deposition upon reasonable notice, in compliance with Code of Civil Procedure section 2034.62, subdivision (d).

Thus, all requirements of Code of Civil

Procedure section 2034.62 have been met, and leave to amend the Declaration is appropriate.

Accordingly, Plaintiff's Motion for Leave to

Amend Plaintiff's Expert Witness Designation is granted.